

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

INTERIM APPLICATION NO. 6695 OF 2025
IN
INCOME TAX APPEAL (L) NO. 10613 OF 2024

Pr Commissioner of Income Tax 1 Mumbai

...Applicant/Appellant

Versus

Andhra Pradesh Expressway Ltd

...Respondent

Mr Y S Bhate, for Applicant/Appellant.

Ms Sofiya Shanmugam, with Saksham Singhal, i/b Vaish Associates, for
Respondent.

CORAM: G. S. KULKARNI &
DR. NEELA GOKHALE, JJ.

DATE: 11th SEPTEMBER 2026

P.C.

1. We have heard learned counsel for the parties on this interim application which is filed praying for condonation of delay in filing the aforesaid appeal under Section 260A of the Income Tax Act. The delay which is sought to be condoned is of 06 days. Learned counsel for the Respondent has opposed the application although no written opposition is filed to this application.

2. In the aforesaid circumstances, having perused the memo of the application and considering the period of delay being very short, in our opinion, the reasons as set out certainly provide for an appropriate justification and a sufficient cause shown by the applicant in regard to the delay in filing the appeal. It is hence in the interest of justice that the delay is condoned.

3. The application is hence allowed in terms of prayer clause (a). Interim application stands disposed of in the above terms. No costs.

4. Let the office objections, if any, be removed within a period of 8 weeks from today.

(DR. NEELA GOKHALE, J)

(G. S. KULKARNI, J.)